

RESOLUTION NO. 2024-048

A RESOLUTION PROVIDING FOR THE ADOPTION AND APPROVAL OF THE FINAL REVENUE AND APPROPRIATION BUDGETS OF THE DEPENDENT TAXING DISTRICT OF PLANTATION MIDTOWN DEVELOPMENT DISTRICT FOR THE OPERATING FISCAL YEAR OCTOBER 1, 2024 THROUGH SEPTEMBER 30, 2025; PROVIDING FINDINGS; PROVIDING A SAVINGS CLAUSE; AND PROVIDING AN EFFECTIVE DATE THEREFOR.

WHEREAS, the City of Plantation has created a local government neighborhood district known as the Plantation Midtown Development District; and,

WHEREAS, the Plantation Midtown Development District is a dependent special taxing district to the City; and,

WHEREAS, the City Council has established itself as the Board of Directors for the Plantation Midtown Development District; and,

WHEREAS, on September 12, 2024, the City Council acting as the Plantation Midtown Development District Board of Directors, approved the tentative budget estimates of revenue and expenditures of the general and construction funds and tentative millage rate of the dependent taxing district of Plantation Midtown Development District, for the ensuing operating fiscal year beginning October 1, 2024 through September 30, 2025; and the Council has carefully considered such budgets and made such changes as it deems advisable; and the said tentative budgets have been open for inspection in the Office of the City Clerk and have been properly proposed in accordance with the City Charter of the City of Plantation; and,

WHEREAS, the City Charter allows the City to approve its budget by Resolution, and thereby, the City Council acting as the Board of Directors of the Plantation Midtown Development District may approve its finalized budget in the same manner.

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF DIRECTORS OF THE PLANTATION MIDTOWN DEVELOPMENT DISTRICT, THAT:

Section 1: The final revenue appropriations budget for each fund of the dependent taxing district of Plantation Midtown Development District is herewith approved for the next ensuing fiscal year October 1, 2024 through September 30, 2025.

Section 2: The budgets will from time to time be amended at the fund level by the resolution approving the weekly expenditure report, and the actual fiscal year-end budgets will be finally reflected in the Annual Comprehensive Financial Report (ACFR).

Section 11: §166.211(11) Fla. Stat. (2000 Supp.), requires the budget to regulate the expenditures of a municipality (and thus would also apply to its dependent districts), and

further forbids an expenditure or contract for expenditures in any fiscal year, except in pursuance of budgeted appropriations. This section shall provide supplemental regulations to District expenditures that apply to this fiscal year budget. The Board of Directors of the Plantation Midtown Development District recognize that its estimated budgeted appropriations, which are herewith approved, may change during the fiscal year based upon actual conditions and has provided in the preceding section that the estimated revenue budget and estimated appropriation budget amounts may be periodically modified by City resolutions when approving the weekly bill list and shall be reflected in the end of the fiscal year Annual Comprehensive Financial Report (ACFR). In the unlikely event that the District makes an expenditure that exceeds the initial estimated budgeted appropriations with interim amendments made by the approval of the weekly expenditure report, the budget, as amended, shall be further amended as soon as possible so as to reflect suitable estimated appropriations for such expenditures; provided that the budget as finally reflected in the Annual Comprehensive Financial Report (ACFR), and Other Schedules, shall reflect fund amounts and budgeted appropriations sufficient to cover (offset) all authorized expenditures in such fiscal year. Furthermore, the District capital project funds shall be budgeted on a year-to-year basis as opposed to a project-life basis.

Section 4: Should any section, paragraph, sentence, clause, phrase or other part of this Resolution be declared by a court of competent jurisdiction to be invalid, such decision shall not affect the validity of this Resolution as a whole or any portion or part thereof, other than the part so declared to be invalid.

Section 5: This Resolution shall take effect immediately upon passage by the Plantation Midtown Development District signature by its Chairperson of the Board.

PASSED AND ADOPTED by the Plantation Midtown Development District this 18th day of September 2024.

SIGNED by the Chairperson of the Board this 18th day of September 2024.

Timothy J. Fadgen, Council President
Chairperson of the Board of Directors,
Plantation Midtown Development District

ATTEST:

City Clerk